

**THE GAZETTE OF INDIA
EXTRAORDINARY
PART – III – SECTION 4
PUBLISHED BY AUTHORITY
NEW DELHI, APRIL 27, 2018**

**SECURITIES AND EXCHANGE BOARD OF INDIA
NOTIFICATION**

Mumbai, the 27th April, 2018

**SECURITIES AND EXCHANGE BOARD OF INDIA
(EMPLOYEES' SERVICE) (AMENDMENT) REGULATIONS, 2018**

No. SEBI/LAD-NRO/GN/2018/09 - In exercise of the powers conferred by section 30 of the Securities and Exchange Board of India Act, 1992 (15 of 1992), the Board hereby makes the following regulations to further amend the Securities and Exchange Board of India (Employees' Service) Regulations, 2001, namely,–

1. These regulations may be called the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2018.
2. They shall come into force on the date of their publication in the Official Gazette.
3. In the Securities and Exchange Board of India (Employees' Service) Regulations, 2001, -
 - (a) in regulation 37, in sub-regulation (1), -

- i. in the first clause, the words, figure and symbols “ten months (300 days)” shall be substituted with figure and word “300 days”.
- ii. the first and the second clauses shall be numbered as (i) and (ii) respectively and thereafter the following new clause shall be inserted, namely, -

“(iii) Where an employee has to his credit 286 days or more of ordinary leaves, the further credit of 15 days ordinary leave shall be done at the beginning of each half year (on 1st April or 1st October) to the employee’s additional ordinary leave account and the ordinary leaves availed during the six month period thereafter ending on 30th September or 31st March shall be deducted from such account:

Provided that if ordinary leaves sanctioned is for less than 15 days, the balance shall be credited to the ordinary leave account subject to the ceiling of 300 days at the close of that half year:

Provided further that an employee shall have his ordinary leaves sanctioned and availed before 30th September or 31st March as leaves beyond 300 days will lapse on 30th September or 31st March, as the case may be.”

- iii. the existing third and fourth clauses shall be accordingly numbered as clauses (iv) and (v) respectively.

(b) in regulation 38, -

- i. in sub-regulation (1), the words “in two years” shall be substituted with the words “every calendar year”.
- ii. the existing provisos appearing thereafter shall be substituted with the following new proviso, namely,-

“Provided the employee has to his credit a balance of 180 days ordinary leaves or more after encashment.”

Sd/-

AJAY TYAGI

CHAIRMAN

SECURITIES AND EXCHANGE BOARD OF INDIA

Footnote:

1. The Securities and Exchange Board of India (Employees’ Service) Regulations, 2001, were published in the Gazette of India on 6th September, 2001 vide S.O. No. 857(E).

2. They were subsequently amended –

(a) On 23rd December, 2003 by the Securities and Exchange Board of India (Employees’ Service) (Amendment) Regulations, 2003 vide F. No. SEBI/LE/15/2003.

(b) On 25th May, 2004 by the Securities and Exchange Board of India (Employees’ Service) (Amendment) Regulations, 2004 vide S.O. No.623 (E).

(c) On 11th April, 2007 by the Securities and Exchange Board of India (Employees’ Service) (Amendment) Regulations, 2007 vide F. No.11/LC/GN/2006/2143.

- (d) On 14th January, 2010 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2010 vide notification No. LADNRO/GN/2009-10/28/190983.
- (e) On 12th October, 2010 by the Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2010 vide notification No. LAD-NRO/GN/2010-11/17/22954.
- (f) On 10th October, 2011 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2011 vide notification No. LAD-NRO/GN/2011-12/26/31671.
- (g) On 2nd May 2012 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2012 vide notification No. LADNRO/GN/2012-13/03/5290.
- (h) On 19th November 2012 by the Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2012 vide notification No. LAD-NRO/GN/2012-13/223/5429.
- (i) On 8th October, 2013 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2013 vide notification No. LADNRO/GN/2013-14/27/6721.
- (j) On 26th February, 2015 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2015 vide notification No. LADNRO/GN/2014-15/22/366.
- (k) On 21st April, 2015 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2015 vide notification No. SEBINRO/OIAE/GN/2015-16/002.
- (l) On 30th November, 2016 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2016 vide notification No. SEBI/LAD/NRO/GN/2016-17/016.
- (m) On 15th December, 2016 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2016 vide notification No. SEBI/LAD/NRO/GN/2016-17/024.
- (n) On 27th April, 2017 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2017 vide notification No. SEBI/LAD/NRO/GN/2017-18/001.
- (o) On 17th May, 2017 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2017 vide notification No. SEBI/LAD/NRO/GN/2017-18/002.

(p) On 13th July, 2017 by Securities and Exchange Board of India (Employees' Service) (Third Amendment) Regulations, 2017 vide notification No. SEBI/LAD-NRO/GN/2017-18/010.
